

FL-21-001608 LINARES VS OROZCO

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-07-14

Motion: Third-Party's Motion re Joinder—HEARING REQUIRED. The parties are unmarried and pursuant to the most recent and conditionally non-modifiable custody orders, Respondent exercises sole legal and physical custody of the minor children. Third-Party alleges she is the paternal grandmother and seeks to exercise statutory grandparent visitation by court order over Respondent's objection. If Respondent appears and consents to any grandparent visitation, then the Court will exercise discretion as to whether the matter may be referred to mediation, and if an agreement is reached, then joinder may be granted. Otherwise, Third-Party may not be joined as a matter of law and no mediation or child visitation may take place over Respondent's objection unless and until Third-Party demonstrates by clear and convincing evidence that such is in the best interests of the minor children. (Fam. Code § 3104(a)(2); Cal. Rules of Court, rule 5.24(e)(1)(B); Local Rules, rule 7.08(B)(2); In re Marriage of Harris (2004) 34 Cal.4th 210, 222; Rich v. Thatcher (2011) 200 Cal.App.4th 1176, 1181 [clear and convincing evidence burden essential to constitutionality of statutory grandparent visitation over fit custodial parents' objections]; Ian J. v. Peter M. (2013) 213 Cal.App.4th 189, 205-209 [trial court abused discretion in failing to apply clear and convincing evidence standard and to consider "the breadth of circumstances a parent may reasonably consider in deciding to limit or prevent contact with a grandparent"].)

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